Changes to Legislation: as of 17 September 2026, this Act is up to date with all changes known to be in force.

Number 11 *of* 2017

CRIMINAL JUSTICE (OFFENCES RELATING TO INFORMATION SYSTEMS) ACT 2017

REVISED

Updated to 2 April 2025

This Revised Act is an administrative consolidation of the *Criminal Justice (Offences Relating to Information Systems) Act 2017*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Merchant Shipping (Investigation of Marine Accidents) Act 2025* (2/2025), enacted 14 April 2025, and all statutory instruments up to and including the *Policing, Security and Community Safety Act 2024 (Commencement) Order 2025* (S.I. No. 107 of 2025), made 2 April 2025, were considered in the preparation of this Revised Act.

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Number 11 *of* 2017

CRIMINAL JUSTICE (OFFENCES RELATING TO INFORMATION SYSTEMS) ACT 2017

REVISED

Updated to 2 April 2025

An Act to give effect to certain provisions of Directive 2013/40/EU of the European Parliament and of the Council of 12 August 2013[1] on attacks against information systems and replacing Council Framework Decision 2005/222/JHA; for those and other purposes to amend the Criminal Damage Act 1991, the Bail Act 1997 and the Criminal Justice Act 2011; and to provide for related matters.

[24*th May*, 2017]

Be it enacted by the Oireachtas as follows:

Interpretation

1.(1) In this Act—

"act" includes an omission;

"data" means any representation of facts, information or concepts in a form capable of being processed in an information system, and includes a programme capable of causing an information system to perform a function;

"information system" means—

(a) a device or group of interconnected or related devices, one or more than one of which performs automatic processing of data pursuant to a programme, and

(b) data stored, processed, retrieved or transmitted by such a device or group of devices for the purposes of the operation, use, protection or maintenance of the device or group of devices, as the case may be;

"lawful authority", in relation to an information system, means—

(a) with the authority of the owner of the system,

(b) with the authority of a right holder of the system, or

(c) as permitted by law;

"Minister" means the Minister for Justice and Equality;

"relevant offence" means an offence under *section 2*, *3*, *4*, *5*, *6* or *9(1)*;

[1] OJ No. L218, 14.8.2013, p. 8